

Privacy Policy for KINEVATE SPATIALYST INC.

Effective Date: July 27, 2026

This Privacy Policy describes how KINEVATE SPATIALYST INC. (referred to as "KINEVATE," "we," "us," or "our"), an Indiana-based company specializing in spatial computing, hardware-software integration, and quad-modal sensor fusion, collects, uses, maintains, and discloses information collected from users (each, a "User") of the <https://ceokinevatespatialyst26-source.github.io/kinevate-spatialyst/> website ("Site") and our future products and services. This policy also outlines your choices regarding your data.

1. Information We Collect

We collect various types of information, including personal data, to provide and improve our services. The type of information collected depends on your interaction with our Site and future products.

1.1. Information You Provide to Us

- **Inquiry Form Data:** When you submit an inquiry through our Site (e.g., "Request a Demo," "Partner With Us," "Enterprise Inquiry"), we collect personal identifiers such as your full name, company name, work email address, deployment context, and project details. This information is used to respond to your inquiries and understand your needs.
- **Communications:** If you contact us directly, we may receive additional information about you, such as the contents of the message and/or attachments you may send us, and any other information you choose to provide.

1.2. Information Collected Automatically (Future Products)

As KINEVATE develops and deploys its spatial computing and quad-modal sensor fusion products, we anticipate collecting data through our hardware and software. This may include:

- **Spatial Data:** Information about physical environments, object locations, and movements captured by visual/depth imaging, motion/IMU sensors, and other modalities.
- **Telemetry Data:** Data related to the performance and operation of our hardware and software systems.
- **Edge AI Data:** Data processed on-device or near-edge for real-time fusion and analysis.

- **Potential Biometric Information:** Our quad-modal sensor fusion technology may, depending on its specific application and configuration, collect data that could be classified as "biometric identifiers" or "biometric information" under laws like the Illinois Biometric Information Privacy Act (BIPA) ². This could include unique patterns derived from facial scans, voiceprints, gait analysis, or other physical characteristics. We are committed to assessing and addressing such data with the highest level of privacy protection.

1.3. Cookies and Tracking Technologies

Our Site may use "cookies" and similar tracking technologies to enhance User experience. Your web browser places cookies on your hard drive for record-keeping purposes and sometimes to track information about you. You may choose to set your web browser to refuse cookies or to alert you when cookies are being sent. If you do so, note that some parts of the Site may not function properly.

2. How We Use Your Information

We use the information we collect in various ways, including to:

- Provide, operate, and maintain our Site and future products/services.
- Improve, personalize, and expand our Site and future products/services.
- Understand and analyze how you use our Site and future products/services.
- Develop new products, services, features, and functionality.
- Communicate with you, either directly or through one of our partners, including for customer service, to provide you with updates and other information relating to the Site and future products/services, and for marketing and promotional purposes.
- Process your inquiries and provide technical briefings.
- Find and prevent fraud.
- Comply with legal obligations and enforce our agreements.

3. How We Share Your Information

We may share your information with third parties in the following situations:

- **With Your Consent:** We may share your information with your explicit consent.
- **Service Providers:** We may share your information with third-party service providers who perform services on our behalf, such as website hosting, data analysis, payment

processing, information technology, and related infrastructure provision, customer service, email delivery, and auditing services.

- **Business Transfers:** In connection with, or during negotiations of, any merger, sale of company assets, financing, or acquisition of all or a portion of our business to another company.
- **Legal Requirements:** We may disclose your information if required to do so by law or in the good faith belief that such action is necessary to (i) comply with a legal obligation, (ii) protect and defend the rights or property of KINEVATE, (iii) act in urgent circumstances to protect the personal safety of users of the Site or the public, or (iv) protect against legal liability.
- **Affiliates:** We may share your information with our affiliates, in which case we will require those affiliates to honor this Privacy Policy.

We do not sell, lease, trade, or otherwise profit from your biometric identifiers or biometric information.

4. Data Retention

We retain personal data for as long as necessary to fulfill the purposes for which it was collected, including for the purposes of satisfying any legal, accounting, or reporting requirements. To determine the appropriate retention period for personal data, we consider the amount, nature, and sensitivity of the personal data, the potential risk of harm from unauthorized use or disclosure of your personal data, the purposes for which we process your personal data and whether we can achieve those purposes through other means, and the applicable legal requirements.

For any data that could be classified as biometric, we will develop and make publicly available a written policy establishing a retention schedule and guidelines for permanently destroying biometric identifiers and biometric information when the initial purpose for collecting or obtaining such identifiers or information has been satisfied or within 3 years of the individual's last interaction with KINEVATE, whichever occurs first [2](#).

5. Your Data Protection Rights

Depending on your location and the nature of the data collected, you may have the following data protection rights:

- **Right to Access:** You have the right to request copies of your personal data.
- **Right to Rectification:** You have the right to request that we correct any information you believe is inaccurate or complete information you believe is incomplete.

- ****Right to Erasure:** You have the right to request that we erase your personal data, under certain conditions.
- **Right to Restrict Processing:** You have the right to request that we restrict the processing of your personal data, under certain conditions.
- **Right to Object to Processing:** You have the right to object to our processing of your personal data, under certain conditions.
- **Right to Data Portability:** You have the right to request that we transfer the data that we have collected to another organization, or directly to you, under certain conditions.

If you make a request, we have one month to respond to you. If you would like to exercise any of these rights, please contact us at [Insert Contact Email Here].

6. Security of Your Information

We adopt appropriate data collection, storage, and processing practices and security measures to protect against unauthorized access, alteration, disclosure, or destruction of your personal information, username, password, transaction information, and data stored on our Site. We implement and maintain reasonable security measures appropriate to the nature of the information we process, including technical, physical, and administrative safeguards. For biometric information, our security measures will be at least as protective as those used for other confidential and sensitive information ².

7. Children's Privacy

Our products and services are not intended for individuals under the age of 13. We do not knowingly collect personally identifiable information from children under 13. If you are a parent or guardian and you are aware that your child has provided us with personal data, please contact us. If we become aware that we have collected personal data from children without verification of parental consent, we take steps to remove that information from our servers.

8. Changes to This Privacy Policy

KINEVATE has the discretion to update this Privacy Policy at any time. When we do, we will revise the "Effective Date" at the top of this page. We encourage Users to frequently check this page for any changes to stay informed about how we are helping to protect the personal information we collect. You acknowledge and agree that it is your responsibility to review this Privacy Policy periodically and become aware of modifications.

9. Contacting Us

If you have any questions about this Privacy Policy, the practices of this Site, or your dealings with us, please contact us at:

KINEVATE SPATIALYST INC.

[Insert Company Address Here]

[Insert Contact Email Here]

References

[1] Indiana Code Article 24-15, Consumer Data Protection. Available at:

[2] Illinois Biometric Information Privacy Act (740 ILCS 14/15). Available at: